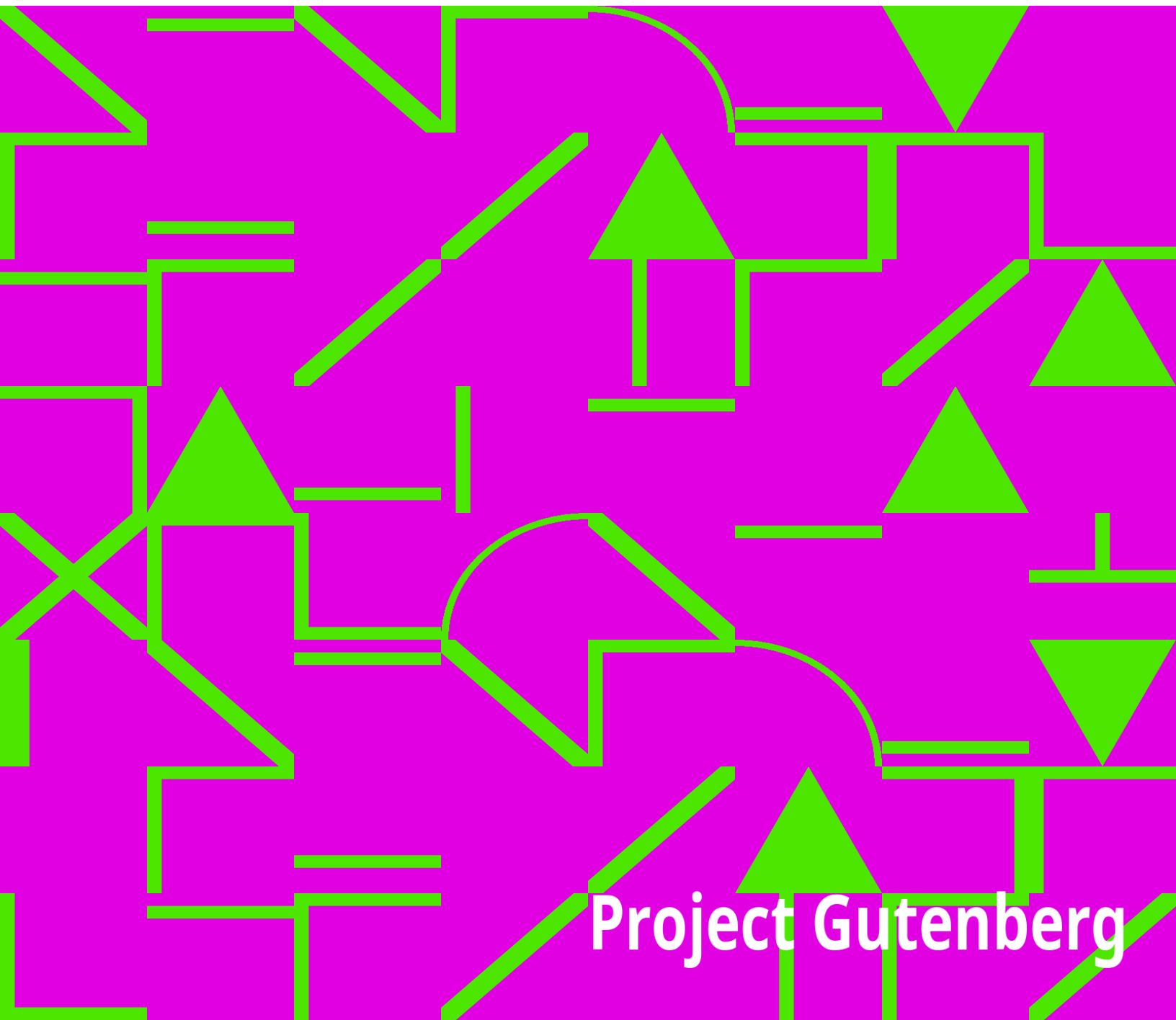


Memoirs of Napoleon Bonaparte — Volume 14

Louis Antoine Fauvelet de Bourrienne and



Project Gutenberg

**Memoirs of Napoleon Bonaparte — Volume
14**

Louis Antoine Fauvelet de Bourrienne and

Project Gutenberg

The Project Gutenberg eBook of Memoirs of Napoleon Bonaparte — Volume 14

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Memoirs of Napoleon Bonaparte — Volume 14

Author: Louis Antoine Fauvelet de Bourrienne

Editor: Ramsay Weston Phipps

Release date: December 1, 2002 [eBook #3564]

Most recently updated: January 8, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/3564

Credits: This etext was produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK MEMOIRS OF
NAPOLEON BONAPARTE — VOLUME 14 ***

This etext was produced by David Widger

[NOTE: There is a short list of bookmarks, at the end of several of the files for those who may wish to sample the author's ideas before making an entire meal of them. D.W.]

MEMOIRS OF NAPOLEON BONAPARTE, VOLUME 14.

By LOUIS ANTOINE FAUVELET DE BOURRIENNE

His Private Secretary

Edited by R. W. Phipps
Colonel, Late Royal Artillery

1891

CONTENTS:
CHAPTER VII. to CHAPTER X. 1815

CHAPTER VII.

—[By the Editor of the 1836 edition]—

1815.

Napoleon at Paris—Political manoeuvres—The meeting of the Champ- de-Mai—Napoleon, the Liberals, and the moderate Constitutionalists —His love of arbitrary power as strong as ever —Paris during the Cent Jours—Preparations for his last campaign —The Emperor leaves Paris to join the army—State of Brussels—Proclamation of Napoleon to the Belgians—Effective strength of the French and Allied armies —The Emperor's proclamation to the French army.

Napoleon was scarcely reseated on his throne when he found he could not resume that absolute power he had possessed before his abdication at Fontainebleau. He was obliged to submit to the curb of a representative government, but we may well believe that he only yielded, with a mental reservation that as soon as victory should return to his standards and his army be reorganised he would send the representatives of the people back to their departments, and make himself as absolute as he had ever been. His temporary submission was indeed obligatory.

The Republicans and Constitutionalists who had assisted, or not opposed his return, with Carnot, Fouché, Benjamin Constant, and his own brother Lucien (a lover of constitutional liberty) at their head, would support him

only on condition of his reigning as a constitutional sovereign; he therefore proclaimed a constitution under the title of "Acte additionnel aux Constitutions de l'Empire," which greatly resembled the charter granted by Louis XVIII. the year before. An hereditary Chamber of Peers was to be appointed by the Emperor, a Chamber of Representatives chosen by the Electoral Colleges, to be renewed every five years, by which all taxes were to be voted, ministers were to be responsible, judges irremovable, the right of petition was acknowledged, and property was declared inviolable. Lastly, the French nation was made to declare that they would never recall the Bourbons.

Even before reaching Paris, and while resting on his journey from Elba at Lyons, the second city in France, and the ancient capital of the Franks, Napoleon arranged his ministry, and issued sundry decrees, which show how little his mind was prepared for proceeding according to the majority of votes in representative assemblies.

Cambaceres was named Minister of Justice, Fouche Minister of Police (a boon to the Revolutionists), Davoust appointed Minister of War. Decrees upon decrees were issued with a rapidity which showed how laboriously Bonaparte had employed those studious hours at Elba which he was supposed to have dedicated to the composition of his Memoirs. They were couched in the name of "Napoleon, by the grace of God, Emperor of France," and were dated on the 13th of March, although not promulgated until the 21st of that month. The first of these decrees abrogated all changes in the courts of justice and tribunals which had taken place during the absence of Napoleon. The second banished anew all emigrants who had returned to France before 1814 without proper authority, and displaced all officers belonging to the class of emigrants introduced into the army by the King. The third suppressed the Order of St. Louis, the white flag, cockade, and other Royal emblems, and restored the tri-coloured banner and the

Imperial symbols of Bonaparte's authority. The same decree abolished the Swiss Guard and the Household troops of the King. The fourth sequestered the effects of the Bourbons. A similar Ordinance sequestered the restored property of emigrant families.

The fifth decree of Lyons suppressed the ancient nobility and feudal titles, and formally confirmed proprietors of national domains in their possessions. (This decree was very acceptable to the majority of Frenchmen). The sixth declared sentence of exile against all emigrants not erased by Napoleon from the list previously to the accession of the Bourbons, to which was added confiscation of their property. The seventh restored the Legion of Honour in every respect as it had existed under the Emperor; uniting to its funds the confiscated revenues of the Bourbon order of St. Louis. The eighth and last decree was the most important of all. Under pretence that emigrants who had borne arms against France had been introduced into the Chamber of Peers, and that the Chamber of Deputies had already sat for the legal time, it dissolved both Chambers, and convoked the Electoral Colleges of the Empire, in order that they might hold, in the ensuing month of May, an extraordinary assembly—the Champ-de-Mai.

This National Convocation, for which Napoleon claimed a precedent in the history of the ancient Franks, was to have two objects: first, to make such alterations and reforms in the Constitution of the Empire as circumstances should render advisable; secondly, to assist at the coronation of the Empress Maria Louisa. Her presence, and that of her son, was spoken of as something that admitted of no doubt, though Bonaparte knew there was little hope of their return from Vienna. These various enactments were well calculated to serve Napoleon's cause. They flattered the army, and at the same time stimulated their resentment against the emigrants, by insinuating that they had been sacrificed by Louis to the interest of his

followers. They held out to the Republicans a prospect of confiscation, proscription, and, revolution of government, while, the Imperialists were gratified with a view of ample funds for pensions, offices, and honorary decorations. To proprietors of the national domains security was promised, to the Parisians the grand spectacle of the Champ-de-Mai, and to France peace and tranquillity, since the arrival of the Empress and her son, confidently asserted to be at hand, was taken as a pledge of the friendship of Austria.

Napoleon at the same time endeavoured to make himself popular with the common people—the, mob of the Faubourg St. Antoine and other obscure quarters of Paris. On the first evening of his return, as he walked round the glittering circle met to welcome him, in the State apartments of the Tuileries, he kept repeating, "Gentlemen, it is to the poor and disinterested mass of the people that I owe everything; it is they who have brought me back to the capita. It is the poor subaltern officers and common soldiers that have done all this. I owe everything to the common people and the ranks of the army. Remember that! I owe everything to the army and the people!" Some time after he took occasional rides through the Faubourg St. Antoine, but the demonstrations of the mob gave him little pleasure, and, it was easy to detect a sneer in his addresses to them. He had some slight intercourse with the men of the Revolution—the fierce, bloodthirsty Jacobins—but even now he could not conceal his abhorrence of them, and, be it said to his honour, he had as little to do with them as possible.

When Napoleon, departed for the summer campaign he took care beforehand to leave large sums of money for the 'federes'; in the hands of the devoted Real; under whose management the mob was placed. These sums were to be distributed at appropriate seasons, to make the people cry in the streets of Paris, "Napoleon or death." He also left in the hands of Davoust a written authority for the publication of his bulletins, many

clauses of which were written long before the battles were fought that they were to describe. He gave to the same Marshal a plan of his campaign, which he had arranged for the defensive. This was not confided to him without an injunction of the strictest secrecy, but it is said that Davoust communicated the plan to Fouché. Considering Davoust's character this is very unlikely, but if so, it is far from improbable that Fouché communicated the plan to the Allies with whom, and more particularly with Prince Metternich, he is well known to have been corresponding at the time.

Shortly after the Emperor's arrival in Paris Benjamin Constant, a moderate and candid man, was deputed by the constitutional party to ascertain Napoleon's sentiments and intentions. Constant was a lover of constitutional liberty, and an old opponent of Napoleon, whose headlong career of despotism, cut out by the sword, he had vainly endeavoured to check by the eloquence of his pen.

The interview took place at the Tuileries. The Emperor, as was his wont, began the conversation, and kept it nearly all to himself during the rest of the audience. He did not affect to disguise either his past actions or present dispositions.

"The nation," he said, "has had a respite of twelve years from every kind of political agitation, and for one year has enjoyed a respite from war. This double repose has created a craving after activity. It requires, or fancies it requires, a Tribune and popular assemblies. It did not always require them. The people threw themselves at my feet when I took the reins of government. You ought to recollect this, who made a trial of opposition. Where was your support—your strength? Nowhere. I assumed less authority than I was invited to assume. Now all is changed. A feeble government, opposed to the national interests, has given to these interests the habit of standing on the defensive and evading authority. The taste for

constitutions, for debates, for harangues, appears to have revived. Nevertheless it is but the minority that wishes all this, be assured. The people, or if you like the phrase better; the multitude, wish only for me. You would say so if you had only seen this multitude pressing eagerly on my steps, rushing down from the tops of the mountains, calling on me, seeking me out, saluting me. On my way from Cannes hither I have not conquered—I have administered. I am not only (as has been pretended) the Emperor of the soldiers; I am that of the peasants of the plebeians of France. Accordingly, in spite of all that has happened, you see the people come back to me. There is sympathy between us. It is not as with the privileged classes. The noblesse have been in my service; they thronged in crowds into my antechambers. There is no place that they have not accepted or solicited. I have had the Montmorencys, the Noailles, the Rohans, the Beauveaus, the Montemarts, in my train. But there never was any cordiality between us. The steed made his curvets—he was well broken in, but I felt him quiver under me. With the people it is another thing. The popular fibre responds to mine. I have risen from the ranks of the people: my voice sets mechanically upon them. Look at those conscripts, the sons of peasants: I never flattered them; I treated them roughly. They did not crowd round me the less; they did not on that account cease to cry, 'Vive l'Empereur!' It is that between them and me there is one and the same nature. They look to me as their support, their safeguard against the nobles. I have but to make a sign, or even to look another way, and the nobles would be massacred in every province. So well have they managed matters in the last ten months! but I do not desire to be the King of a mob. If there are the means to govern by a constitution well and good. I wished for the empire of the world, and to ensure it complete liberty of action was necessary to me. To govern France merely it is possible that a constitution may be better. I wished for the empire of the world, as who would not have done in my place? The world invited me to rule over it. Sovereigns and subjects alike emulously bowed

the neck under my sceptre. I have seldom met with opposition in France, but still I have encountered more of it from some obscure and unarmed Frenchmen than from all these Kings so resolute, just now, no longer to have a man of the people for their equal! See then what appears to you possible; let me know your ideas. Public discussion, free elections, responsible ministers, the liberty of the press, I have no objection to all that, the liberty of the press especially; to stifle it is absurd. I am convinced on this point. I am the man of the people: if the people really wish for liberty let them have it. I have acknowledged their sovereignty. It is just that I should lend an ear to their will, nay, even to their caprices I have never been disposed to oppress them for my pleasure. I conceived great designs; but fate 'has been against me; I am no longer a conqueror, nor can I be one. I know what is possible and what is not.—I have no further object than to raise up France and bestow on her a government suitable to her. I have no hatred to liberty, I have set it aside when it obstructed my path, but I understand what it means; I was brought up in its school: besides, the work of fifteen years is overturned, and it is not possible to recommence it. It would take twenty years, and the lives of 2,000,000 of men to be sacrificed to it. As for the rest, I desire peace, but I can only obtain it by means of victory. I would not inspire you with false expectations. I permit it to be said that negotiations are going on; there are none. I foresee a hard struggle, a long war. To support it I must be seconded by the nation, but in return I believe they will expect liberty. They shall have it: the circumstances are new. All I desire is to be informed of the truth. I am getting old. A man is no longer at forty-five what he was at thirty. The repose enjoyed by a constitutional king may suit me: it will still more certainly be the best thing, for my son."

From this remarkable address. Benjamin Constant concluded that no change had taken place in Bonaparte's views or feelings in matters of government, but, being convinced that circumstances had changed, he had

made up his mind to conform to them. He says, and we cannot doubt it, "that he listened to Napoleon with the deepest interest, that there was a breadth and grandeur of manner as he spoke, and a calm serenity seated on a brow covered with immortal laurels."

Whilst believing the utter incompatibility of Napoleon and constitutional government we cannot in fairness omit mentioning that the causes which repelled him from the altar and sanctuary of freedom were strong: the real lovers of a rational and feasible liberty—the constitutional monarchy men were few—the mad ultra-Liberals, the Jacobins, the refuse of one revolution and the provokers of another, were numerous, active, loud, and in pursuing different ends these two parties, the respectable and the disreputable, the good and the bad, got mixed and confused with one another.

On the 14th of May, when the 'federes' were marshalled in processional order and treated with what was called a solemn festival, as they moved along the boulevards to the Court of the Tuileries, they coupled the name of Napoleon with Jacobin curses and revolutionary songs. The airs and the words that had made Paris tremble to her very centre during the Reign of Terror—the "Marseillaise," the "Carmagnole," the "Jour du depart," the execrable ditty, the burden of which is, "And with the entrails of the last of the priests let us strangle the last of the kings," were all roared out in fearful chorus by a drunken, filthy, and furious mob. Many a day had elapsed since they had dared to sing these blasphemous and antisocial songs in public. Napoleon himself as soon as he had power enough suppressed them, and he was as proud of this feat and his triumph over the dregs of the Jacobins as he was of any of his victories; and in this he was right, in this he proved himself the friend of humanity. As the tumultuous mass approached the triumphal arch and the grand entrance to the Palace he could not conceal his abhorrence. His Guards were drawn up under arms, and numerous pieces of

artillery, already loaded were turned out on the Place du Carrousel. He hastily dismissed these dangerous partisans with some praise, some money, and some drink. On coming into close contact with such a mob he did not feel his fibre respond to that of the populace! Like Frankenstein, he loathed and was afraid of the mighty monster he had put together.

But it was not merely the mob that checked the liberalism or constitution of Napoleon, a delicate and doubtful plant in itself, that required the most cautious treatment to make it really take root and grow up in such a soil: Some of his councillors, who called themselves "philosophical statesmen," advised him to lay aside the style of Emperor, and assume that of High President or Lord General of the Republic! Annoyed with such puerilities while the enemy was every day drawing nearer the frontiers he withdrew from the Tuileries to the comparatively small and retired palace of the Elysee, where he escaped these talking-dreamers, and felt himself again a sovereign: Shut up with Benjamin Constant and a few other reasonable politicians, he drew up the sketch of a new constitution, which was neither much better nor much worse than the royal charter of Louis XVIII. We give an epitome of its main features.

The Emperor was to have executive power, and to exercise legislative power in concurrence with the two Chambers. The Chamber of Peers was to be hereditary, and nominated by the Emperor, and its number was unlimited. The Second Chamber was to be elected by the people, and to consist of 629 members; none to be under the age of twenty-five. The President was to be appointed by the members, but approved of by the Emperor. Members were to be paid at the rate settled by the Constituent Assembly, which was to be renewed every five years. The Emperor might prorogue, adjourn, or dissolve the House of Representatives, whose sittings were to be public. The Electoral Colleges were maintained. Land tax and direct taxes were to be voted only for a year, indirect taxes might be

imposed for several years. No levy of men for the army nor any exchange of territory was to be made but by a law. Taxes were to be proposed by the Chamber of Representatives. Ministers to be responsible. Judges to be irremovable. Juries to be established. Right of petition, freedom of worship, inviolability of property, were recognised. Liberty of the press was given under legal responsibility, and press offences were to be judged with a jury. No place or part of the territory could be placed in a state of siege except in case of foreign invasion or civil troubles. Finally, the French people declared that in the delegation it thus made of its powers it was not to be taken as giving the right to propose the re-establishment of the Bourbons, or of any Prince of that family on the throne, even in case of the extinction of the imperial dynasty. Any such proposal was formally interdicted to the Chambers or to the citizens, as well as any of the following measures, viz. the re-establishment of the former, feudal nobility, of the feudal and seignorial rights, of tithes, of any privileged and dominant religion, as well as of the power of making any attack on the irrevocability of the sale of the national goods.

Shortly after the return of Napoleon from Elba, believing it to be impossible to make the Emperor of Austria consent to his wife's rejoining him (and Maria Louisa had no inclination to a renewal of conjugal intercourse), Napoleon had not been many days in Paris when he concocted a plan for carrying off from Vienna both his wife and his son: In this project force was no less necessary than stratagem. A number of French of both sexes much devoted to the Emperor, who, had given them rank and fortune, had accompanied Maria Louisa in 1814 from Paris to Blois and thence to Vienna. A correspondence was opened with these persons, who embarked heart and soul in the plot; they forged passports, procured relays, of horses; and altogether arranged matters so well that but a for a single individual—one who revealed the whole project a few days previously to that fixed upon for carrying it into effect—there is little room to doubt that the plan

would have succeeded, and that the daughter of Austria and the titular King of home would have given such, prestige as their presence could give at the Tuileries and the Champs-de- Mai. No sooner had the Emperor of Austria discovered this plot, which, had it been successful, would have placed him in a very awkward predicament, than he dismissed all the French people about his daughter, compelled her to lay aside the armorial bearings and liveries of Napoleon, and even to relinquish the title of Empress of the French: No force, no art, no police could conceal these things from the people of Paris; who, moreover, and at nearly the same time; were made very uneasy by the failure of Murat's attempt in Italy, which greatly increased the power and political influence of Austria. Murat being disposed of, the Emperor Francis was enabled to concentrate all his forces in Italy, and to hold them in readiness for the re-invasion of France.

"Napoleon," says Lavallette, "had undoubtedly expected that the Empress and his son would be restored to him; he had published his wishes as a certainty, and to prevent it was, in fact, the worst injury the Emperor of Austria could have done, him. His hope was, however, soon destroyed.

"One evening I was summoned to the palace. I found the Emperor in a dimly-lighted closet, warming himself in a corner of the fireplace, and appearing to suffer already from the complaint which never afterwards left him. 'Here is a letter,' he said, 'which the courier from Vienna says is meant for you—read it.' On first casting my eyes on the letter I thought I knew the handwriting, but as it was long I read it slowly, and came at last to the principal object. The writer said that we ought not to reckon upon the Empress, as she did not even attempt to conceal her dislike of the Emperor, and was disposed to approve all the measures that could be taken against him; that her return was not to be thought of, as she herself would raise the greatest obstacles in the way of it; in case it should be proposed; finally, that it was not possible for him to dissemble his indignation that the Empress,

wholly enamoured of ——, did not even take pains to hide her ridiculous partiality for him. The handwriting of the letter was disguised, yet not so much but that I was able to discover whose it was. I found; however, in the manner in which the secret was expressed a warmth of zeal and a picturesque style that did not belong to the author of the letter. While reading it, I all of a sudden suspected it was a counterfeit, and intended to mislead the Emperor. I communicated my idea to him, and the danger I perceived in this fraud. As I grew more and more animated I found plausible reasons enough to throw the Emperor himself into some uncertainty. 'How is it possible,' I said, 'that —— should have been imprudent enough to write such things to me, who am not his friend, and who have had so little connection with him? How can one suppose that the Empress should forget herself, in such circumstances, so far as to manifest aversion to you, and, still more, to cast herself away upon a man who undoubtedly still possesses some power to please, but who is no longer young, whose face is disfigured, and whose person, altogether, has nothing agreeable in it?' 'But,' answered the Emperor, —— is attached to me; and though he is not your friend, the postscript sufficiently explains the motive of the confidence he places in you.' The following words were, in fact, written at the bottom of the letter: 'I do not think you ought to mention the truth to the Emperor, but make whatever use of it you think proper.' I persisted, however, in maintaining that the letter was a counterfeit; and the Emperor then said to me, 'Go to Caulaincourt. He possesses a great many others in the same handwriting. Let the comparison decide between your opinion and mine.'

"I went to Caulaincourt, who said eagerly to me, 'I am sure the letter is from ——, and I have not the least doubt of the truth of the particulars it contains. The best thing the Emperor can do is to be comforted; there is no help to be expected from that side.'

"So sad a discovery was very painful to the Emperor, for he was sincerely attached to the Empress, and still hoped again to see his son, whom he loved most tenderly.'

"Fouche had been far from wishing the return of the Emperor. He was long tired of obeying, and had, besides, undertaken another plan, which Napoleon's arrival had broken off. The Emperor, however, put him again at the head of the police, because Savary was worn out in that employment, and a skillful man was wanted there. Fouche accepted the office, but without giving up his plan of deposing the Emperor, to put in his place either his son or a Republic under a President. He had never ceased to correspond with Prince Metternich, and, if he is to be believed, he tried to persuade the Emperor to abdicate in favour of his son. That was also my opinion; but; coming from such a quarter, the advice was not without danger for the person to whom it was given. Besides, that advice having been rejected, it: was the duty of the Minister either to think no more of his plan or to resign his office. Fouche, however, remained in the Cabinet; and continued his correspondence. The Emperor, who placed but little confidence in him; kept a careful eye upon him. One evening the Emperor: had a great deal of company at the Elysee, he told me not to go home, because he wished to speak to me. When everybody was gone the Emperor stopped with Fouche in the apartment next to the one I was in. The door remained half open. They walked up and down together talking very calmly. I was therefore greatly astonished when, after a quarter of, an hour, I heard the Emperor say to him' gravely, 'You are a traitor! Why do you remain Minister of the Police if you wish to betray me? It rests with me to have you hanged, and everybody would rejoice at your death!' I did not hear Fouche's reply, but the conversation lasted above half an hour longer, the parties all the time walking up and down. When Fouche went away he bade me cheerfully, good-night, and said that the Emperor had gone back to his apartments.

"The next day the Emperor spoke to me of the previous night's conversation. 'I suspected,' he said, 'that the wretch was in correspondence with Vienna. I have had a banker's clerk arrested on his return from that city. He has acknowledged that he brought a letter for Fouche from Metternich, and that the answer was to be sent at a fixed time to Bale, where a man was to wait for the bearer on the bridge: I sent for Fouche a few days ago, and kept him three hours long in my garden, hoping that in the course of a friendly conversation he would mention that letter to me, but he said nothing. At last, yesterday evening, I myself opened the subject.' (Here the Emperor repeated to me the words I had heard the night before, 'You are a traitor,' etc.) He acknowledged, in fact, continued the Emperor, 'that he had received such a letter, but that it was not signed and that he had looked upon it as a mystification. He showed it me. Now that letter was evidently an answer, in which the writer again declared that he would listen to nothing more concerning the Emperor, but that, his person excepted, it would be easy to agree to all the rest. I expected that the Emperor would conclude his narrative by expressing his anger against Fouche, but our conversation turned on some other subject, and he talked no more of him.

"Two days afterwards I went to Fouche to solicit the return to Paris of an officer of musqueteers who had been banished far from his family. I found him at breakfast, and sat down next to him. Facing him sat a stranger. 'Do you see this man?' he said to me; pointing with his spoon to the stranger; 'he is an aristocrat, a Bourbonist, a Chouan; it is the Abbe ——, one of the editors of the *Journal des Debats*—a sworn enemy to Napoleon, a fanatic partisan of the Bourbons; he is one of our men. I looked, at him. At every fresh epithet of the Minister the Abbe bowed his head down to his plate with a smile of cheerfulness and self-complacency, and with a sort of leer. I never saw a more ignoble countenance. Fouche explained to me, on leaving the breakfast table, in what manner all these valets of literature were men of his, and while I acknowledged to myself that the system might be

necessary, I scarcely knew who were really more despicable—the wretches who thus sold themselves to the highest bidder, or the minister who boasted of having bought them, as if their acquisition were a glorious conquest. Judging that the Emperor had spoken to me of the scene I have described above, Fouche said to me, 'The Emperor's temper is soured by the resistance he finds, and he thinks it is my fault. He does not know that I have no power but by public opinion. To morrow I might hang before my door twenty persons obnoxious to public opinion, though I should not be able to imprison for four-and-twenty hours any individual favoured by it. As I am never in a hurry to speak I remained silent, but reflecting on what the Emperor had said concerning Fouche I found the comparison of their two speeches remarkable. The master could have his minister hanged with public applause, and the minister could hang—whom? Perhaps the master himself, and with the same approbation. What a singular situation!—and I believe they were both in the right; so far public opinion, equitable in regard to Fouche, had swerved concerning the Emperor."

The wrath of Napoleon was confined to the Lower House, the Peers, from the nature of their composition, being complacent and passive enough. The vast majority of them were in fact mere shadows gathered round the solid persons of Joseph, Lucien, Louis, and Jerome Bonaparte, and Sieyes, Carnot, and the military men of the Revolution. As a political body Napoleon despised them himself, and yet he wanted the nation to respect them. But respect was impossible, and the volatile Parisians made the Peers a constant object of their witticisms. The punsters of Paris made the following somewhat ingenious play upon words. Lallemand, Labedogure, Drouot, and Ney they called *Las Quatre Pairs fides* (*perfides*), which in pronunciation may equally mean the four faithful peers or the four perfidious men. The infamous Vandamme and another were called *Pair-siffles*, the biased peers, or the biased pair, or (*persiffles*) men made objects

of derision. It was thus the lower orders behaved while the, existence of France was at stake.

By this time the thunder-cloud of war had gathered and was ready to burst. Short as the time at his disposal was Napoleon prepared to meet it with his accustomed energy. Firearms formed one of the most important objects of attention. There were sufficient sabres, but muskets were wanting. The Imperial factories could, in ordinary times, furnish monthly 20,000 stands of new arms; by the extraordinary activity and inducements offered this number was doubled. Workmen were also employed in repairing the old muskets. There was displayed at this momentous period the same activity in the capital as in 1793, and better directed, though without the same ultimate success. The clothing of the army was another difficulty, and this was got over by advancing large sums of money to the cloth manufacturers beforehand. The contractors delivered 20,000 cavalry horses before the 1st of June, 10,000 trained horses had been furnished by the dismounted gendarmerie. Twelve thousand artillery horses were also delivered by the 1st of June, in addition to 6000 which the army already had.

The facility with which the Ministers of Finance and of the Treasury provided for all these expenses astonished everybody, as it was necessary to pay for everything in ready money. The system of public works was at the same time resumed throughout France. "It is easy to see," said the workmen, "that 'the great contractor' is returned; all was dead, now everything revives."

"We have just learnt," says a writer who was at Brussels at this time, "that Napoleon had left the capital of France on the 12th; on the 15th the frequent arrival of couriers excited extreme anxiety, and towards evening General Muffling presented himself at the hotel of the Duke of Wellington with

despatches from Blucher. We were all aware that the enemy was in movement, and the ignorant could not solve the enigma of the Duke going tranquilly to the ball at the Duke of Richmond's—his coolness was above their comprehension. Had he remained at his own hotel a panic would have probably ensued amongst the inhabitants, which would have embarrassed the intended movement of the British division of the army.

"I returned home late, and we were still talking over our uneasiness when we heard the trumpets sound. Before the sun had risen in full splendour I heard martial music approaching, and soon beheld from my windows the 5th reserve of the British army passing; the Highland brigade were the first in advance, led by their noble thanes, the bagpipes playing their several pibrochs; they were succeeded by the 28th, their bugles' note falling more blithely upon the ear. Each regiment passed in succession with its band playing."

The gallant Duke of Brunswick was at a ball at the assembly-rooms in the Rue Ducale on the night of the 15th of June when the French guns, which he was one of the first to hear, were clearly distinguished at Brussels. "Upon receiving the information that a powerful French force was advancing in the direction of Charleroi. 'Then it is high time for me to be off,' he exclaimed, and immediately quitted, the ball-room."

"At four the whole disposable force under the Duke of Wellington was collected together, but in such haste that many of the officers had no time to change their silk stockings and dancing-shoes; and some, quite overcome by drowsiness, were seen lying asleep about the ramparts, still holding, however, with a firm hand, the reins of their horses, which were grazing by their sides.

"About five o'clock the word 'march' was heard in all directions, and instantly the whole mass appeared to move simultaneously. I conversed

with several of the officers previous to their departure, and not one appeared to have the slightest idea of an approaching engagement.

"The Duke of Wellington and his staff did not quit Brussels till past eleven o'clock, and it was not till some time after they were gone that it was generally known the whole French army, including a strong corps of cavalry, was within a few miles of Quatre Bras."

CHAPTER VIII.

—[Like the preceding, this chapter first appeared in the 1836 edition, and is not from the pen of M. de Bourrienne.]—

1815.

THE BATTLES OF LIGNY AND QUATRE BRAS.

The moment for striking a decisive blow had now come, and accordingly, early on the morning of the 15th, the whole of the French army was in motion. The 2d corps proceeded to Marchiennes to attack the Prussian outposts at Thuin and Lobes, in order to secure the communication across the Sambre between those places. The 3d corps, covered by General Pajol's cavalry, advanced upon Charleroi, followed by the Imperial Guard and the 6th corps, with the necessary detachments of pontoniers. The remainder of the cavalry, under Grouchy, also advanced upon Charleroi, on the flanks of the 3d and 6th corps. The 4th corps was ordered to march upon the bridge of Chatelet.

On the approach of the French advanced guards an incessant skirmish was maintained during the whole morning with the Prussians, who, after losing many men, were compelled to yield to superior numbers. General Zieten, finding it impossible, from the extent of frontier he had to cover, to check the advance of the French, fell back towards Fleurus by the road to

Charleroi, resolutely contesting the advance of the enemy wherever it was possible. In the repeated attacks sustained by him he suffered considerable loss. It was nearly mid-day before a passage through Charleroi was secured by the French army, and General Zieten continued his retreat upon Fleurus, where he took up his position for the night. Upon Zieten's abandoning, in the course of his retreat, the chaussee which leads to Brussels through Quatre Bras, Marshal Ney, who had only just been put in command on the left of the French army, was ordered to advance by this road upon Gosselies, and found at Frasnes part of the Duke of Wellington's army, composed of Nassau troops under the command of Prince Bernard of Saxe-Weimar, who, after some skirmishing, maintained his position. "Notwithstanding all the exertions of the French at a moment when time was of such importance, they had only been able to advance about fifteen English miles during the day, with nearly fifteen hours of daylight."

It was the intention of Napoleon during his operations on this day to effect a separation between the English and Prussian armies, in which he had nearly succeeded. Napoleon's plan for this purpose, and the execution of it by his army, were alike admirable, but it is hardly probable that the Allied generals were taken by surprise, as it was the only likely course which Napoleon could have taken. His line of operation was on the direct road to Brussels, and there were no fortified works to impede his progress, while from the nature of the country his numerous and excellent cavalry could be employed with great effect.

In the French accounts Marshal Ney was much blamed for not occupying Quatre Bras with the whole of his force on the evening of the 16th. "Ney might probably have driven back the Nassau troops at Quatre Bras, and occupied that important position, but hearing a heavy cannonade on his right flank, where General Zieten had taken up his position, he thought it necessary to halt and detach a division in the direction of Fleurus. He was

severely censured by Napoleon for not having literally followed his orders and pushed on to Quatre Bras." This accusation forms a curious contrast with that made against Grouchy, upon whom Napoleon threw the blame of the defeat at Waterloo, because he strictly fulfilled his orders, by pressing the Prussians at Wavre, unheeding the cannonade on his left, which might have led him to conjecture that the more important contest between the Emperor and Wellington was at that moment raging.

It was at six o'clock in the evening of the 16th that the Duke of Wellington received the first information of the advance of the French army; but it was not, however, until ten o'clock that positive news reached him that the French army had moved upon the line of the Sambre. This information induced him to push forward reinforcements on Quatre Bras, at which place he himself arrived at an early hour on the 16th, and immediately proceeded to Bry, to devise measures with Marshal Blucher in order to combine their efforts. From the movement of considerable masses of the French in front of the Prussians it was evident that their first grand attack would be directed against them. That this was Napoleon's object on the 16th maybe seen by his orders to Ney and Grouchy to turn the right of the Prussians, and drive the British from their position at Quatre Bras, and then to march down the chaussee upon Bry in order effectually to separate the two armies. Ney was accordingly detached for this purpose with 43,000 men. In the event of the success of Marshal Ney he would have been enabled to detach a portion of his forces for the purpose of making a flank attack upon the Prussians in the rear of St. Amand, whilst Napoleon in person was directing his main efforts against that village the strongest in the Prussian position. Ney's reserve was at Frasnes, disposable either for the purpose of supporting the attack on Quatre Bras or that at St. Amand; and in case of Ney's complete success to turn the Prussian right flank by marching on Bry.

CHAPTER IX.

1815

THE BATTLE OF WATERLOO.

One of the most important struggles of modern times was now about to commence—a struggle which for many years was to decide the fate of Europe. Napoleon and Wellington at length stood opposite one another. They had never met; the military reputation of each was of the highest kind,

—[For full details of the Waterloo campaign see Siborne's History of the War in France and Belgium in 1815, giving the English contemporary account; Chesney's Waterloo Lectures, the best English modern account, which has been accepted by the Prussians as pretty nearly representing their view; and Waterloo by Lieutenant-Colonel Prince Edouard de la Tour d'Auvergne (Paris, Plon, 1870), which may be taken as the French modern account.

In judging this campaign the reader must guard himself from looking on it as fought by two different armies—the English and the Prussian—whose achievements are to be weighed against one another. Wellington and Blücher were acting in a complete unison rare even when two different corps of the same nation are concerned, but practically unexampled in the case of two armies of

different nations. Thus the two forces became one army, divided into two wings, one, the left (or Prussian wing) having been defeated by the main body of the French at Ligny on the 16th of June, the right (or English wing) retreated to hold the position at Waterloo, where the left (or Prussian wing) was to join it, and the united force was to crash the enemy. Thus there is no question as to whether the Prussian army saved the English by their arrival, or whether the English saved the Prussians by their resistance at Waterloo. Each army executed well and gallantly its part in a concerted operation. The English would never have fought at Waterloo if they had not relied on the arrival of the Prussians. Had the Prussians not come up on the afternoon of the 18th of June the English would have been exposed to the same great peril of having alone to deal with the mass of the French army, as the Prussians would have had to face if they had found the English in full retreat. To investigate the relative performances of the two armies is much the same as to decide the respective merits of the two Prussian armies at Sadowa, where one held the Austrians until the other arrived. Also in reading the many interesting personal accounts of the campaign it must be remembered that opinions about the chance of success in a defensive struggle are apt to warp with the observer's position, as indeed General Grant has remarked in answer to criticisms on his army's state at the end of the first day of the battle of Shiloh or 'Pittsburg Landing. The man placed in the front rank or fighting line sees attack after attack beaten off. He sees only part of his own losses, and most of the wounded disappear, and he also knows something of the enemy's loss by seeing the dead in front of him. Warmed by the contest, he thus believes in success. The man placed in rear or advancing with reinforcements, having nothing of the excitement of the struggle,

sees only the long and increasing column of wounded, stragglers, and perhaps of fliers. He sees his companion fall without being able to answer the fire. He sees nothing of the corresponding loss of the enemy, and he is apt to take a most desponding view of the situation. Thus Englishmen reading the accounts of men who fought at Waterloo are too ready to disbelieve representations of what was taking place in the rear of the army, and to think Thackeray's life-like picture in *Vanity Fair* of the state of Brussels must be overdrawn. Indeed, in this very battle of Waterloo, Zieten began to retreat when his help was most required, because one of his aides de camp told him that the right wing of the English was in full retreat. "This inexperienced young man," says Muffling, p. 248, "had mistaken the great number of wounded going, or being taken, to the rear to be dressed, for fugitives, and accordingly made a false report." Further, reserves do not say much of their part or, sometimes, no part of the fight, and few people know that at least two English regiments actually present on the field of Waterloo hardly fired a shot till the last advance.

The Duke described the army as the worst he ever commanded, and said that if he had had his Peninsular men, the fight would have been over much sooner. But the Duke, sticking to ideas now obsolete, had no picked corps. Each man, trusting in and trusted by his comrades, fought under his own officers and under his own regimental colours. Whatever they did not know, the men knew how to die, and at the end of the day a heap of dead told where each regiment and battery had stood.]—

the career of both had been marked by signal victory; Napoleon had carried his triumphant legions across the stupendous Alps, over the north of Italy, throughout Prussia, Austria, Russia, and even to the foot of the

Pyramids, while Wellington, who had been early distinguished in India, had won immortal renown in the Peninsula, where he had defeated, one after another, the favourite generals of Napoleon. He was now to make trial of his prowess against their Master.

Among the most critical events of modern times the battle of Waterloo stands conspicuous. This sanguinary encounter at last stopped the torrent of the ruthless and predatory ambition of the French, by which so many countries had been desolated. With the peace which immediately succeeded it confidence was restored to Europe.

CHAPTER X.

1815

Interview with Lavallette—Proceedings in the French Chambers
— Second abdication of Napoleon—He retires to Rochefort,
negotiates with Captain Maitland, and finally embarks in the
'Bellerophon'.

One of the first public men to see Napoleon after his return from Waterloo was Lavallette. "I flew," says he, "to the Elysee to see the Emperor: he summoned me into his closet, and as soon as he saw me, he came to meet me with a frightful epileptic 'laugh. 'Oh, my God!' he said, raising his eyes to heaven, and walking two or three times up and down the room. This appearance of despair was however very short. He soon recovered his coolness, and asked me what was going forward in the Chamber of Representatives. I could not attempt to hide that party spirit was there carried to a high pitch, and that the majority seemed determined to require his abdication, and to pronounce it themselves if he did not concede willingly. 'How is that?' he said. 'If proper measures are not taken the enemy will be before the gates of Paris in eight days. Alas!' he added, 'have I accustomed them to such great victories that they knew not how to bear one day's misfortune? What will become of poor France? I have done all I could for her!' He then heaved a deep sigh. Somebody asked to speak to him, and I left him, with a direction to come back at a later hour.

"I passed the day in seeking information among all my friends and acquaintances. I found in all of them either the greatest dejection or an extravagant joy, which they disguised by feigned alarm and pity for myself, which I repulsed with great indignation. Nothing favourable was to be expected from the Chamber of Representatives. They all said they wished for liberty, but, between two enemies who appeared ready to destroy it, they preferred the foreigners, the friends of the Bourbons, to Napoleon, who might still have prolonged the struggle, but that he alone would not find means to save them and erect the edifice of liberty. The Chamber of Peers presented a much sadder spectacle. Except the intrepid Thibaudeau, who till the last moment expressed himself with admirable energy against the Bourbons, almost all the others thought of nothing else but getting out of the dilemma with the least loss they could. Some took no pains to hide their wish of bending again under the Bourbon yoke."

On the evening of Napoleon's return to Paris he sent for Benjamin Constant to come to him at the Elysee about seven o'clock. The Chambers had decreed their permanence, and proposals for abdication had reached the Emperor. He was serious but calm. In reply to some words on the disaster of Waterloo he said, "The question no longer concerns me, but France. They wish me to abdicate. Have they calculated upon the inevitable consequences of this abdication? It is round me, round my name, that the army rallies: to separate me from it is to disband it. If I abdicate to-day, in two days' time you will no longer have an army. These poor fellows do not understand all your subtleties. Is it believed that axioms in metaphysics, declarations of right, harangues from the tribune, will put a stop to the disbanding of an army? To reject me when I landed at Cannes I can conceive possible; to abandon me now is what I do not understand. It is not when the enemy is at twenty-five leagues' distance that any Government can be overturned with impunity. Does any one imagine that the Foreign Powers will be won over by fine words? If they had dethroned me fifteen days ago there would have

been some spirit in it; but as it is, I make part of what strangers attack, I make part, then, of what France is bound to defend. In giving me up she gives up herself, she avows her weakness, she acknowledges herself conquered, she courts the insolence of the conqueror. It is not the love of liberty which deposes me, but Waterloo; it is fear, and a fear of which your enemies will take advantage. And then what title has the Chamber to demand my abdication? It goes out of its lawful sphere in doing so; it has no authority. It is my right, it is my duty to dissolve it."

"He then hastily ran over the possible consequences of such a step. Separated from the Chambers, he could only be considered as a military chief: but the army would be for him; that would always join him who can lead it against foreign banners, and to this might be added all that part of the population which is equally powerful and easily, led in such a state of things. As if chance intended to strengthen Napoleon in this train of thought, while he was speaking the avenue of Marigny resounded with the cries of 'Vive l'Empereur!' A crowd of men, chiefly of the poor and labouring class, pressed forward into the avenue, full of wild enthusiasm, and trying to scale the walls to make an offer to Napoleon to rally round and defend him. Bonaparte for some time looked attentively at this group. 'You see it is so,' said he; "those are not the men whom I have loaded with honours and riches. What do these people owe me? I found them—I left them—poor. The instinct of necessity enlightens them; the voice of the country speaks by their mouths; and if I choose, if I permit it, in an hour the refractory Chambers will have ceased to exist. But the life of a man is not worth purchasing at such a price: I did not return from the Isle of Elba that Paris should be inundated with blood: He did not like the idea of flight. 'Why should I not stay here?' he repeated. 'What do you suppose they would do to a man disarmed like me? I will go to Malmaison: I can live there in retirement with some friends, who most certainly will come to see me only for my own sake.'

"He then described with complacency and even with a sort of gaiety this new kind of life. Afterwards, discarding an idea which sounded like mere irony, he went on. 'If they do not like me to remain in France, where am I to go? To England? My abode there would be ridiculous or disquieting. I should be tranquil; no one would believe it. Every fog would be suspected of concealing my landing on the coast. At the first sign of a green coat getting out of a boat one party would fly from France, the other would put France out of the pale of the law. I should compromise everybody, and by dint of the repeated "Behold he comes!" I should feel the temptation to set out. America would be more suitable; I could live there with dignity. But once more, what is there to fear? What sovereign can, without injuring himself, persecute me? To one I have restored half his dominions; how often has the other pressed my hand, calling me a great man! And as to the third, can he find pleasure or honour in humiliation of his son-in-law? Would they wish to proclaim in the face of the world that all they did was through fear? As to the rest, I shall see: I do not wish to employ open force. I came in the hope of combining our last resources: they abandoned me; they do so with the same facility with which they received me back. Well, then, let them efface, if possible, this double stain of weakness and levity! Let them cover it over with some sacrifice, with some glory! Let them do for the country what they will not do for me. I doubt it. To-day, those who deliver up Bonaparte say that it is to save France: to-morrow, by delivering up France, they will prove that it was to save their own heads.'"

The humiliating scenes which rapidly succeeded one another; and which ended in Napoleon's unconditional surrender, may be briefly told. As soon as possible after his arrival at Paris he assembled his counsellors, when he declared himself in favour of still resisting. The question, however, was, whether the Chambers would support him; and Lafayette being treacherously informed, it is said by Fouché, that it was intended to dissolve the Chambers, used his influence to get the chambers to adopt the

propositions he laid before them. By these the independence of the nation was asserted to be in danger; the sittings of the Chamber were declared permanent, and all attempts to dissolve it were pronounced treasonable. The propositions were adopted, and being communicated to the Chamber of Peers, that body also declared itself permanent. Whatever might have been the intentions of Bonaparte, it was now manifest that there were no longer any hopes of his being able to make his will the law of the nation; after some vacillation, therefore, on 22d June he published the following declaration:

TO THE FRENCH PEOPLE

FRENCHMEN!—In commencing war for maintaining the national independence, I relied on the union of all efforts, of all wills, and the concurrence of all the national authorities. I had reason to hope for success, and I braved all the declarations of the powers against me. Circumstances appear to me changed. I offer myself a sacrifice to the hatred of the enemies of France. May they prove sincere in their declarations, and really have directed them only against my power. My political life is terminated, and I proclaim my son under the title of:

NAPOLEON II.,

EMPEROR OF THE FRENCH.

The present Ministers will provisionally form the Council of the Government. The interest which I take in my son induces me to invite the Chambers to form without delay the Regency by a law. Unite all for the public safety, that you may continue an independent nation.

(Signed) **NAPOLEON.**

This declaration was conveyed to both the Chambers, which voted deputations to the late Emperor, accepting this abdication, but in their debates the nomination of his son to the succession was artfully eluded. The Chamber of Representatives voted the nomination of a Commission of five persons, three to be chosen from that Chamber, and two from the Chamber of Peers, for the purpose of provisionally exercising the functions of Government, and also that the Ministers should continue their respective functions under the authority of this Commission. The persons chosen by the Chamber of Representatives were Carnot, Fouche, and Grenier, those nominated by the Peers were the Duke of Vicenza (Caulaincourt) and Baron Quinette. The Commission nominated five persons to the Allied army for the purpose of proposing peace. These proceedings were, however, rendered of little importance by the resolution of the victors to advance to Paris.

Napoleon's behaviour just before and immediately after the crisis is well described by Lavallette. "The next day," he observes, "I returned to the Emperor. He had received the most positive accounts of the state of feeling in the Chamber of Representatives. The reports had, however, been given to him with some little reserve, for he did not seem to me convinced that the resolution was really formed to pronounce his abdication, I was better informed on the matter, and I came to him without having the least doubt in my mind that the only thing he could do was to descend once more from the throne. I communicated to him all the particulars I had just received, and I did not hesitate to advise him to follow the only course worthy of him. He listened to me with a sombre air, and though he was in some measure master of himself, the agitation of his mind and the sense of his position betrayed themselves in his face and in all his motions. 'I know,' said I, 'that your Majesty may still keep the sword drawn, but with whom, and against whom? Defeat has chilled the courage of every one; the army is still in the greatest confusion. Nothing is to be expected from Paris, and the coup d'etat

of the 18th Brumaire cannot be renewed.'—'That thought,' he replied, stopping, 'is far from my mind. I will hear nothing more about myself. But poor France!' At that moment Savary and Caulaincourt entered, and having drawn a faithful picture of the exasperation of the Deputies, they persuaded him to assent to abdication. Some words he uttered proved to us that he would have considered death preferable to that step; but still he took it.

"The great act of abdication being performed, he remained calm during the whole day, giving his advice on the position the army should take, and on the manner in which the negotiations with the enemy ought to be conducted. He insisted especially on the necessity of proclaiming his son Emperor, not so much for the advantage of the child as with a view to concentrate all the power of sentiments and affections. Unfortunately, nobody would listen to him. Some men of sense and courage rallied round that proposition in the two Chambers, but fear swayed the majority; and among those who remained free from it many thought that a public declaration of liberty, and the resolution to defend it at any price, would make the enemy and the Bourbons turn back. Strange delusion of weakness and want of experience! It must, however, be respected, for it had its source in love of their country; but, while we excuse it, can it be justified? The population of the metropolis had resumed its usual appearance, which was that of complete indifference, with a resolution to cry 'Long live the King!' provided the King arrived well escorted; for one must not judge of the whole capital by about one-thirtieth part of the inhabitants, who called for arms, and declared themselves warmly against the return of the exiled family.

"On the 23d I returned to the Elysee. The Emperor had been for two hours in his bath. He himself turned the discourse on the retreat he ought to choose, and spoke of the United States. I rejected the idea without reflection, and with a degree of vehemence that surprised him. 'Why not

America?' he asked. I answered, 'Because Moreau retired there.' The observation was harsh, and I should never have forgiven myself for having expressed it; if I had not retracted my advice a few days afterwards. He heard it without any apparent ill-humour, but I have no doubt that it must have made an unfavourable impression on his mind. I strongly urged on his choosing England for his asylum.

"The Emperor went to Malmaison. He was accompanied thither by the Duchesse de St. Leu, Bertrand and his family, and the Duc de Bassano. The day that he arrived there he proposed to me to accompany him abroad. Drouot,' he said, 'remains in France. I see the Minister of War wishes him not to be lost to his country. I dare not complain, but it is a great loss for me; I never met with a better head, or a more upright heart. That man was formed to be a prime minister anywhere.' I declined to accompany him at the time, saying, 'My wife is enceinte; I cannot make up my mind to leave her. Allow me some time, and I will join you wherever you may be. I have remained faithful to your Majesty in better times, and you may reckon upon me now. Nevertheless, if my wife did not require all my attention, I should do better to go with you, for I have sad forebodings respecting my fate.'

"The Emperor made no answer; but I saw by the expression of his countenance that he had no better augury of my fate than I had. However, the enemy was approaching, and for the last three days he had solicited the Provisional Government to place a frigate at his disposal, with which he might proceed to America. It had been promised him; he was even pressed to set off; but he wanted to be the bearer of the order to the captain to convey him to the United States, and that order did not arrive. We all felt that the delay of a single hour might put his freedom in jeopardy.

"After we had talked the subject over among ourselves, I went to him and strongly pointed out to him how dangerous it might be to prolong his stay.

He observed that he could not go without the order. 'Depart, nevertheless,' I replied; your presence on board the ship will still have a great influence over Frenchmen; cut the cables, promise money to the crew, and if the captain resist have him put on shore, and hoist your sails. I have no doubt but Fouche has sold you to the Allies.'— 'I believe it also; but go and make the last effort with the Minister of Marine.' I went off immediately to M. Decres. He was in bed, and listened to me with an indifference that made my blood boil. He said to me, 'I am only a Minister. Go to Fouche; speak to the Government. As for me, I can do nothing. Good-night.' And so saying he covered himself up again in his blankets. I left him; but I could not succeed in speaking either to Fouche or to any of the others. It was two o'clock in the morning when I returned to Malmaison; the Emperor was in bed. I was admitted to his chamber, where I gave him an account of the result of my mission, and renewed my entreaties. He listened to me, but made no answer. He got up, however, and spent a part of the night in walking up and down the room.

"The following day was the last of that sad drama. The Emperor had gone to bed again, and slept a few hours. I entered his cabinet at about twelve o'clock. 'If I had known you were here,' he said, 'I would have had you called in.' He then gave me, on a subject that interested him personally, some instructions which it is needless for me to repeat. Soon after I left him, full of anxiety respecting his fate, my heart oppressed with grief, but still far from suspecting the extent to which both the rigour of fortune and the cruelty of his enemies would be carried."

All the morning of the 29th of June the great road from St. Germain rung with the cries of "Vive l'Empereur!" proceeding from the troops who passed under the walls of Malmaison. About mid-day General Becker, sent by the Provisional Government, arrived. He had been appointed to attend Napoleon. Fouche knew that General Becker had grievances against the

Emperor, and thought to find in him willing agent. He was greatly deceived, for the General paid to the Emperor a degree of respect highly to his honour. Time now became pressing. The Emperor, at the moment of departure, sent a message by General Becker himself to the Provisional Government, offering to march as a private citizen at the head of the troops. He promised to repulse Blucher, and afterwards to continue his route. Upon the refusal of the Provisional Government he quitted Malmaison on the 29th. Napoleon and part of his suite took the road to Rochefort. He slept at Rambouillet on the 29th of June, on the 30th at Tours, on the 1st of July he arrived at Niort, and on the 3d reached Rochefort, on the western coast of France, with the intention of escaping to America; but the whole western seaboard was so vigilantly watched by British men-of-war that, after various plans and devices, he was obliged to abandon the attempt in despair. He was lodged at the house of the prefect, at the balcony of which he occasionally showed himself to acknowledge the acclamations of the people.

During his stay here a French naval officer, commanding a Danish merchant vessel, generously offered to some of Napoleon's adherents to further his escape. He proposed to take Napoleon alone, and undertook to conceal his person so effectually as to defy the most rigid scrutiny, and offered to sail immediately to the United States of America. He required no other compensation than a small sum to indemnify the owners of his ship for the loss this enterprise might occasion them. This was agreed to by Bertrand upon certain stipulations.

On the evening of the 8th of July Napoleon reached Fouras, receiving everywhere testimonies of attachment. He proceeded on board the Saale, one of the two frigates appointed by the Provisional Government to convey him to the United States, and slept on board that night. Very early on the following morning he visited the fortifications of that place, and returned to

the frigate for dinner. On the evening of the 9th of July he despatched Count Las Cases and the Duke of Rovigo to the commander of the English squadron, for the purpose of ascertaining whether the passports promised by the Provisional Government to enable him to proceed to America had been received. A negative answer was returned; it was at the same time signified that the Emperor would be attacked by the English squadron if he attempted to sail under a flag of truce, and it was intimated that every neutral vessel would be examined, and probably sent into an English port. Las Cases affirms that Napoleon was recommended to proceed to England by Captain Maitland, who assured him that he would experience no ill-treatment there. The English ship 'Bellerophon' then anchored in the Basque roads, within sight of the French vessels of war. The coast being, as we have stated, entirely blockaded by the English squadron, the Emperor was undecided as to the course he should pursue. Neutral vessels and 'chasse-marees', manned by young naval officers, were proposed, and many other plans were devised.

Napoleon disembarked on the 12th at the Isle of Aix with acclamations ringing on every side. He had quitted the frigates because they refused to sail, owing either to the weakness of character of the commandant, or in consequence of his receiving fresh orders from the Provisional Government. Many persons thought that the enterprise might be undertaken with some probability of success; the wind, however, remained constantly in the wrong quarter.

Las Cases returned to the Bellerophon at four o'clock in the morning of the 14th, to inquire whether any reply had been received to the communication made by Napoleon. Captain Maitland stated that he expected to receive it every moment, and added that, if the Emperor would then embark for England, he was authorized to convey him thither. He added, moreover, that in his own opinion, and many other officers present

concurred with him, he had no doubt Napoleon would be treated in England with all-possible attention and respect; that in England neither the King nor Ministers exercised the same arbitrary power as on the Continent; that the English indeed possessed generosity of sentiment and a liberality of opinions superior even to those of the King. Las Cases replied that he would make Napoleon acquainted with Captain Maitland's offer, and added, that he thought the Emperor would not hesitate to proceed to England, so as to be able to continue his voyage to the United States. He described France, south of the Loire, to be in commotion, the hopes of the people resting on Napoleon as long as he was present; the propositions everywhere made to him, and at every moment; his decided resolution not to become the pretest of a civil war; the generosity he had exhibited in abdicating, in order to render the conclusion of a peace more practicable; and his settled determination to banish himself, in order to render that peace more prompt and more lasting.

The messengers returned to their Master, who, after some doubt and hesitation, despatched General Gourgaud with the following well-known letter to the Prince Regent:—

ROCHEFORT, 13th July 1815.

ROYAL HIGHNESS—A victim to the factions which divide my country,

and to the hostility of the greatest Powers of Europe, I have terminated my political career, and come, like Themistocles, to share the hospitality of the British people. I place myself under the protection of their laws, and I claim that from your Royal Highness as the most powerful, the most constant, and the most generous of my enemies.

(Signed) NAPOLEON.

About four P.M. Las Cases and Savory returned to the 'Bellerophon', where they had a long conversation with Captain Maitland, in the presence of Captains Sartorius and Gambler, who both declare that Maitland repeatedly warned Napoleon's adherents not to entertain the remotest idea that he was enabled to offer any pledge whatever to their Master beyond the simple assurance that he would convey him in safety to the English coast, there to await the determination of the British Government.

Napoleon had begun to prepare for his embarkation before daylight on the 15th. It was time that he did so, for a messenger charged with orders to arrest him had already arrived at Rochefort from the new Government. The execution of this order was delayed by General Becker for a few hours in order to allow Napoleon sufficient time to escape. At daybreak, he quitted the 'Epervier', and was enthusiastically cheered by the ship's company so long as the boat was within hearing. Soon after six he was received on board the 'Bellerophon' with respectful silence, but without those honours generally paid to persons of high rank. Bonaparte was dressed in the uniform of the 'chasseurs a cheval' of the Imperial Guard, and wore the Grand Cross of the Legion of Honour.

On entering the vessel he took off his hat, and addressing Captain Maitland, said, "I am come to throw myself on the protection of the laws of England." Napoleon's manner was well calculated to make a favourable impression on those with whom he conversed. He requested to be introduced to the officers of the ship, and put various questions to each. He then went round the ship, although he was informed that the men were cleaning and scouring, and remarked upon anything which struck him as differing from what he had seen on French vessels. The clean appearance of the men surprised him. "He then observed," says Captain Maitland, to whose interesting narrative we refer, "I can see no sufficient reason why your ships should beat the French ones with so much ease. The finest men-

of-war in your service are French; a French ship is heavier in every respect than one of yours; she carries more guns, and those guns are of a larger calibre, and she has a great many more men." His inquiries, which were minute, proved that he had directed much attention to the French navy.

On the first morning Napoleon took breakfast in the English fashion, but observing that his distinguished prisoner did not eat much, Captain Maitland gave direction that for the future a hot breakfast should be served up after the French manner. 'The Superb', the Admiral's ship, which had been seen in the morning, was now approaching. Immediately on her anchoring Captain Maitland went on board to give an account of all that had happened, and received the Admiral's approbation of what he had done. In the afternoon Admiral Sir Henry Hotham was introduced to Napoleon, and invited by him to dinner. This was arranged, in order to make it more agreeable to him, by Bonaparte's maitre d'hotel. On dinner being announced Napoleon led the way, and seated himself in the centre at one side of the table, desiring Sir Henry Hotham to take the seat on his right, and Madame Bertrand that on his left hand. On this day Captain Maitland took his seat at the end of the table, but on the following day, by Napoleon's request, he placed himself on his right hand, whilst General Bertrand took the top. Two of the ship's officers dined with the Emperor daily, by express invitation. The conversation of Napoleon was animated. He made many inquiries as to the family and connections of Captain Maitland, and in alluding to Lord Lauderdale, who was sent as ambassador to Paris during the administration of Mr. Fox, paid that nobleman some compliments and said of the then Premier, "Had Mr. Fox lived it never would have come to this; but his death put an end to all hopes of peace."

On one occasion he ordered his camp-bed to be displayed for the inspection of the English officers. In two small leather packages were comprised the couch of the once mighty ruler of the Continent. The steel

bedstead which, when folded up, was only two feet long, and eighteen inches wide, occupied one case, while the other contained the mattress and curtains. The whole was so contrived as to be ready for use in three minutes.

Napoleon spoke in terms of high praise of the marines on duty in the *Bellerophon*, and on going through their ranks exclaimed to Bertrand, "How much might be done with a hundred thousand such soldiers as these!" In putting them through their exercise he drew a contrast between the charge of the bayonet as made by the English and the French, and observed that the English method of fixing the bayonet was faulty, as it might easily be twisted off when in close action. In visiting Admiral Hotham's flag-ship, the '*Superb*', he manifested the same active curiosity as in former instances, and made the same minute inquiries into everything by which he was surrounded. During breakfast one of Napoleon's suite, Colonel Planat, was much affected, and even wept, on witnessing the humiliation of his Master.

On the return of Bonaparte from the *Superb* to the '*Bellerophon*' the latter ship was got under weigh and made sail for England. When passing within a cable's length of the '*Superb*' Napoleon inquired of Captain Maitland if he thought that distance was sufficient for action. The reply of the English officer was characteristic; he told the Emperor that half the distance, or even less, would suit much better. Speaking of Sir Sidney Smith, Bonaparte repeated the anecdote connected with his quarrel at St. Jean d'Acre with that officer, which has already been related in one of the notes earlier in these volumes. Patting Captain Maitland on the shoulder, he observed, that had it not been for the English navy he would have been Emperor of the East, but that wherever he went he was sure to find English ships in the way.

The '*Bellerophon*', with Bonaparte on board, sighted the coast of England on Sunday, the 23d of July 1815, and at daybreak on the 24th the vessel

approached Dartmouth. No sooner had the ship anchored than an order from Lord Keith was delivered to Captain Maitland, from which the following is an extract:

Extract of an Order from Admiral Viscount Keith, G. C. B., addressed to Captain Maitland, of H. M. S. "Bellerophon," dated Ville de Paris, Hamoaze, 23d July 1815.

Captain Sartorius, of His Majesty's ship 'Slaney', delivered to me last night, at eleven o'clock, your despatch of the 14th instant, acquainting me that Bonaparte had proposed to embark on board the ship you command, and that you had acceded thereto, with the intention of proceeding to Torbay, there to wait for further orders. I lost no time in forwarding your letter by Captain Sartorius to the Lords Commissioners of the Admiralty, in order that their Lordships might, through him, be acquainted with every circumstance that had occurred on an occasion of so much importance; and you may expect orders from their Lordships for your further guidance. You are to remain in Torbay until you receive such orders; and in the meantime, in addition to the directions already in your possession, you are most positively ordered to prevent every person whatever from coming on board the ship you command, except the officers and men who compose her crew; nor is any person whatever, whether in His Majesty's service or not, who does not belong, to the ship, to be suffered to come on board, either for the purpose of visiting the officers, or on any pretence whatever, without express permission either from the Lords Commissioners of the Admiralty or from me. As I understand from Captain Sartorius that General Gourgaud refused to deliver the letter with which he was charged for the Prince Regent to any person except His Royal Highness, you are to take

him out of the 'Slaney' into the ship you command, until you receive directions from the Admiralty on the subject, and order that ship back to Plymouth Sound, when Captain Sartorius returns from London.

It was stated about this time, in some of the English newspapers, that St. Helena would be the place of exile of the ex-Emperor, the bare report of which evidently caused great pain to Napoleon and his suite. General Gourgaud was obliged to return to the 'Bellerophon', not having been suffered to go on shore to deliver the letter from Bonaparte to the Prince Regent with which he had been entrusted. The ship which bore the modern Alexander soon became a natural object of attraction to the whole neighbourhood, and was constantly surrounded by crowds of boats. Napoleon frequently showed himself to the people from shore with a view of gratifying their curiosity. On the 25th of July the number of guard-boats which surrounded the vessel was greatly increased; and the alarm of the captives became greater as the report was strengthened as to the intention of conveying Bonaparte to St. Helena.

In conversation with Captain Maitland, Napoleon, who seemed to be aware that the English fishermen united the occupation of smugglers to their usual trade; stated that many of them had been bribed by him, and had assisted in the escape of French prisoners of war. They had even proposed to deliver Louis XVIII. into his power, but as they would not answer for the safety of his life, Napoleon refused the offer. Upon the arrival of despatches from London the 'Bellerophon' got under weigh for Plymouth Sound on the 26th of July. This movement tended still further to disconcert the ex-Emperor and his followers. In passing the breakwater Bonaparte could not withhold his admiration of that work, which he considered highly honourable to the public spirit of the nation, and, alluding to his own

improvements at Cherbourg, expressed his apprehensions that they would now be suffered to fall into decay.

Captain Maitland was directed by Lord Keith to observe the utmost vigilance to prevent the escape of his prisoners, and with this view no boat was permitted to approach the Bellerophon; the 'Liffey' and 'Eurotas' were ordered to take up an anchorage on each side of the ship, and further precautions were adopted at night.

On the 27th of July Captain Maitland proceeded to Lord Keith, taking with him Bonaparte's original letter to the Prince Regent, which, as General Gourgaud had not been permitted to deliver it personally, Napoleon now desired to be transmitted through the hands of the Admiral. As Lord Keith had now received instructions from his Government as to the manner in which Napoleon was to be treated, he lost no time in paying his respects to the fallen chief.

On the 31st of July the anxiously-expected order of the English Government arrived. In this document, wherein the ex-Emperor was styled "General Bonaparte," it was notified that he was to be exiled to St. Helena, the place of all others most dreaded by him and his devoted adherents. It was, moreover, specified that he might be allowed to take with him three officers, and his surgeon, and twelve servants. To his own selection was conceded the choice of these followers, with the exclusion, however, of Savary and Lallemand, who were on no account to be permitted any further to share his fortunes. This prohibition gave considerable alarm to those individuals, who became excessively anxious as to their future disposal, and declared that to deliver them up to the vengeance of the Bourbons would be a violation of faith and honour.

Napoleon himself complained bitterly on the subject of his destination, and said, "The idea, of it is horrible to me. To be placed for life on an island

within the tropics, at an immense distance from any land, cut off from all communication with the world, and everything that I hold dear in it!—*c'est pis que la cage de fer de Tamerlan*. I would prefer being delivered up to the Bourbons. Among other insults," said he,— "but that is a mere *bagatelle*, a very secondary consideration—they style me General! They can have no right to call me General; they may as well call me 'Archbishop,' for I was Head of the Church as well as of the Army. If they do not acknowledge me as Emperor they ought as First Counsul; they have sent ambassadors to me as such; and your King, in his letters, styled me 'Brother.' Had they confined me in the Tower of London, or one of the fortresses in England (though not what I had hoped from the generosity of the English people), I should not have so much cause of complaint; but to banish me to an island within the tropics! They might as well have signed my death-warrant at once, for it is impossible a man of my habit of body can live long in such a climate."

Having so expressed himself, he wrote a second letter to the Prince Regent, which was forwarded through Lord Keith. It was the opinion of Generals Montholon and Gourgaud that Bonaparte would sooner kill himself than go to St. Helena. This idea arose from his having been heard emphatically to exclaim, "I will not go to St. Helena!" The generals, indeed, declared that were he to give his own consent to be so exiled they would themselves prevent him. In consequence of this threat Captain Maitland was instructed by Lord Keith to tell those gentlemen that as the English law awarded death to murderers, the crime they meditated would inevitably conduct them to the gallows.

Early on the morning of the 4th of August the 'Bellerophon' was ordered to be ready at a moment's notice for sea. The reason of this was traced to a circumstance which is conspicuous among the many remarkable incidents by which Bonaparte's arrival near the English coast was characterised. A rumour reached Lord Keith that a 'habeas corpus' had been procured with a

view of delivering Napoleon from the custody he was then in. This, however, turned out to be a subpoena for Bonaparte as a witness at a trial in the Court of King's Bench; and, indeed, a person attempted to get on board the *Bellerophon* to serve the document; but he was foiled in his intention; though, had he succeeded, the subpoena would, in the situation wherein the ex-Emperor then stood, have been without avail.

On the 5th Captain Maitland, having been summoned to the flag-ship of Lord Keith, acquainted General Bertrand that he would convey to the Admiral anything which Bonaparte (who had expressed an urgent wish to see his lordship) might desire to say to him. Bertrand requested the captain to delay his departure until a document, then in preparation, should be completed: the "PROTEST OF HIS MAJESTY THE LATE EMPEROR OF THE FRENCH, ETC."

Captain Maitland denied that any snare was laid for Bonaparte, either by himself or by the English Government, and stated that the precautions for preventing the escape of Napoleon from Rochefort were so well ordered that it was impossible to evade them; and that the fugitive was compelled to surrender himself to the English ship.

On the 7th of August Bonaparte, with the suite he had selected, was transferred from the '*Bellerophon*' to the '*Northumberland*'. Lord Keith's barge was prepared for his conveyance to the latter vessel, and his lordship was present on the occasion. A captain's guard was turned out, and as Napoleon left the '*Bellerophon*' the marines presented arms, and the drum was beaten as usual in saluting a general officer. When he arrived on board the *Northumberland* the squadron got under weigh, and Napoleon sailed for the place of his final exile and grave.'

—[For the continuation of Napoleon's voyage see Chapter XIII.]—

*** END OF THE PROJECT GUTENBERG EBOOK MEMOIRS OF
NAPOLEON BONAPARTE — VOLUME 14 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project

Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund.

If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.